Table 1

INTERNAL RISK RATING FOR CLIENTS OF SERVICES OF ECOPETROL [4]

Rating	Definition	Description	Equivalence (Credit Risk in the Short Term
1	Superior	Wide and strong capacity to meet commitments. Minimum risk. May be defined as a client of trust. Sufficient requesting a promissory note with letter of instructions[5]. For larger lines of credit the respective manager and/ or director may increase the lines up to 100% of the lines approved with previous authorization from the corresponding vice-president of the Business Unit providing the service. The line of credit conservative and liberal recommended by risk rating agencies shall be understood as an indication and does not oblige ECOPETROL with the client, or the respective manager to use this as a ceiling for the approval of the line of credit at the time of defining a line of credit for a client of confidence.	**Duff / Phelps (D&P):** DP to DP1 **BRC Investors Services (BRC):** BRC 1 to BRC 1 **Byington:** 1 to 2 **BPR Asociados (BPR):** A (1.00-1.50) **Bureau Veritas:** 1
2	Average Superior	Sufficient capacity to fulfill commitments. Low risk.	**D&P:** DP1- **BRC:** BRC 2 **Byington:** 2.1 to 2.9 **BPR:** B(1.51-2.00) **Bureau Veritas:**2

[4] Comments and considerations included by the risk rating agency in its report about a company are understood as already included in the rating given by the risk rating agency, in that sense the same shall not affect again either in a positive or negative manner the rating issued and shall not be taken into account in the analysis conducted by Management at the time of considering, approving or rejecting credit applications.

[5] New clients with rating risks equivalent to superior level (1) and without purchasing records with ECOPETROL may be considered as clients of confidence with previous approval from the vice president of the Business Unit providing the service and the line of credit shall be established by said officer.

17. BANKRUPTCY PROCEEDINGS

ECOPETROL is obliged to protect its rights in any bankruptcy proceedings as set out in the Colombian legislation in which the contractor may be admitted, as it may do it if there was no guarantee as provided by the policy hereof, its application certificates and its coverage, giving notice to the insurance company of said conduct. Any failure to comply with this obligation would cause to ECOPETROL the consequences stipulated in article 1078 of the code of commerce.

18. TIME BAR

The time bar for the actions derived from the contract hereof shall be governed pursuant to article 1081 of the code of commerce as added or amended or any other special applicable law to the case.

19. INCOMPATIBLE CLAUSES

In case of any incongruity or differences between the general and particular conditions of the policy, the latter shall prevail.

20. SETTLEMENT OF CONFLICTS

In case of any disputes or conflicts in connection with the interpretation, execution and enforcement of the policy hereof, the parties shall make their best effort to use the alternative settlement mechanisms as stated in Law 80 of 1993.

21. DOMICILE

Without prejudice of any proceedings stipulations, for all purposes regarding the contract hereof, the parties establish as a domicile the city of Bogota D C.